BLEAT ENTERPRISES (PVT) LTD

And

CANDICE CHRISTINE BRADFIELD

Versus

BETSERAI W.B CHIKURA

MESSENGER OF COURT MASVINGO N.O

SHERIFF OF THE HIGH COURT N.O

PROVINCIAL MAGISTRATE MASVINGO N.O

HIGH COURT OF ZIMBABWE
M DUBE J
BULAWAYO 22 NOVEMBER 2024 & 02 JULY 2025

Opposed Application

J.Tshuma, for the 1st and 2nd applicants
T.Chinyoka, for the 1st respondent
No appearences for the 2nd- 4th respondents

DUBE J: This is an application for a declarator and consequential relief in which the applicants seek relief in the following terms:

> 1. The property described in the court order and writ of ejectment issued pursuant to the ruling under EV05/23 being Lot of Subdivision 12 of Lot 16 of Nuanetsi Ranch A does not correspond with the description of the property which is owned and was occupied by the Applicants which is Lot 1 of Lot 4AB Nuanetsi Ranch A,
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> 2. The ruling of the Magistrate and the subsequent writ of ejectment issued under EV 05/23 are therefore null and void.
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> 3. Consequently, it was incompetent for the 1st and 2nd Respondents to cause the eviction of the Applicant from Lot 1 of Lot 4AB Nuanetsi Ranch A on the basis of the court order and writ of ejectment issued pursuant to the ruling under EV05/23,
>
> 4. In the premises, it be and is hereby ordered that the 1st Respondent and all those claiming occupation through him shall remove or cause the removal of themselves and

all such persons occupying of Lot 1 of Lot 4AB Nuanetsi Ranch A within 48 hours of the service of this order.

5. Failing such removal, the Sheriff of the High court be and is hereby authorised and directed to evict the 1st Respondent and all persons claiming occupation through and under him of Lot 1 of Lot 4AB Nuanetsi Ranch A in the district of Masvingo.

6. The 1st Respondent to pay costs of suit.

In its opposing affidavit the 1st respondent raised three preliminary points viz;

1. Non-Citation of the Minister of Lands, Agriculture, Water, Fisheries and Rural Resettlement.

2. Absence/ Failure to identify the application that is before the court.

3. *Res- Judicata*.

At the hearing, counsel for the parties agreed to ague both the preliminary points and the merits of the matter and allow the court to make its determination. Should the preliminary points be dispositive of the matter that would spell the end of the matter, if not, then this court would proceed and make a determination on the merits. On considering both, I arrived at the conclusion that the preliminary points are very closely related to the merits. I will therefore comment on them in brief.

When one reads through the pleadings filed of record in this matter, one cannot help but remember the words of Mathonsi J (as he then was) in the matter of *Barry James Warwick vs Mercy Jonga* HH 747-15 to the following effect:

> "Sometime in the history of Zimbabwe landless citizens engaged in political demonstrations which involved the invasion of farmland in order to force the hand of government to seriously embark on a program of land reform which would speed up the re-distribution of land to the landless majority. Sensitive to the plight of the landless majority of its citizens, as most of the commercial farmland remained under the control of a few, the government seized the issue by the scraff putting in place legal instruments, including retrospective legislation, in order to lawfully acquire and then re-distribute farm land among the landless.
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> This was done upon a realisation that there was need for the government to have in its possession legal machinery to undertake the exercise and to arm itself with appropriate artillery to empower the majority of the citizens, a realisation which took a cue from the philosophy of Niccolo Machiavell that "all armed prophets have conquered and unarmed prophets have come to grief."

> The situation obtaining at the moment is that land is acquired lawfully by the acquiring authority and distributed to citizens in terms of existing legislation and legal instruments put in place for that purpose. This is as it should be because Zimbabwe embraces the rule of law."

These words ring true in this matter at all levels. That can be deciphered from the wording used. On the one hand the applicants plead for a place to do business of farming by the 1st and a home by the 2nd. A home is described by the 1st respondent quite correctly as a "dwelling place" The 1st respondent takes things a bar further by referring to the applicants as "squatters" on state land seeking to evict the "landlord". I find no need to resort to feudal terms in the interpretation of the law at play herein.

Preliminary Points

1. **Non-Citation of the Minister of Lands, Agriculture, Water, Fisheries and Rural Resettlement**.

It is now settled law that a holder of an offer letter has the right of action, standing alone, to sue for the eviction of any illegal occupier of his land (See *Commercial Farmers Union v Min of Lands & Others* 2010(1) ZLR 546 (S) 596.

I find the gravamen of this being to take the strain off the office of the Minister responsible from being dragged into every dispute over land. This becomes particularly practical if no relief is being sought against the said Minister. I thus find the non-joinder of the Minister of Lands, Agriculture, Water Fisheries and Rural Resettlement to be non-fatal. This preliminary point is thus dismissed.

2. **Absence/ Failure to identify the application that is before the court.**

A discussion of this preliminary point shall be deferred to the main analysis of facts and the law as I find it to be too intricately intertwined with the merits.

3. **Res- Judicata.**

Similarly, I find the *res-judicata* argument to be closely and deeply imbedded into the merits and I shall discuss it thereunder.

The Merits

In the present matter the factual background is clear. On the 29th of September 2017, a property held under Certificate of Registered Title (CRT) 4515/2000, described as Lot 12 of Lot 16 of Nuanetsi Ranch A measuring 61,327 hectares in extent, was published for acquisition in the Government Gazette. That is not subject to any dispute. Sometime in 2019, the 1st respondent approached the applicants with an offer letter, in this offer letter the property granted to the 1st respondent is described as subdivision 1 of Lot 12 of Lot 16 Nuanetsi Ranch measuring 33.327 hectares in extent. That also is not in dispute.

My understanding at this juncture is that a Certificate of Registered Tittle (CRT) such as 4515/2000 in this case, can hold different lots from the parent lot in which they were subdivided. With that parity of reasoning, the piece of land particularly accruing to the 1st respondent by virtue of his offer letter is only limited to Subdivision 1 of Lot 12 of Lot 16 Nuanetsi Ranch. It does not match Lot 1 of Lot 4AB in description and size. In other words, such tittle does not empower 1st respondent to pick and choose any piece of land under CRT 4515/2000. His interest is limited to Subdivision 1 of Lot 12 of Lot 16.

That is when it becomes appropriate to deal with the *res judicata* argument. The 1st respondent approached the Magistrates Court under cover of case number EV 05/23 with an application for eviction against the 1st and 2nd applicants in terms of an offer letter relevant and limited to Subdivision 1 of Lot 12 of Lot 16. That is the matter that the learned Magistrates sitting at Chiredzi adjudicated on. He made a finding specific to the said piece of land. His decision was not appealed against. Neither was a review thereto sought. That decision remains extant. This court shall not visit it because it is not being asked to do so.

Similarly when on the 22nd of August 2023, a writ of ejectment was issued for the ejectment of whoever was in occupation of the property described as Subdivision 1 of Lot 12 of Lot 16 of Mwenezi District Masvingo. Such writ was valid in all respects, and thus cannot and shall not be interfered with. It is only the enforcement of such writ that becomes problematic. This writ was used to carry out an eviction at Lot 1 of Lot 4AR Nuanetsi Ranch A. This is clearly a different property. I did not understand the court order and writ of execution under case number EV 05/23 to give the 1st respondent *carte blanche* powers over the entire Nuanetsi Ranch let alone all lots under CRT 4515/2000. As counsel for the 1st Respondent correctly observes;

> "More importantly, whilst the extent of land under CRT 4515/2000 is 1 18,6962 hectares, and the land registered under Mutirikwi Sugar Company is 61,370 hectares, that which was allocated to 1st Respondent is 33.32 hectares. Clearly therefore, 1st respondent was not allocated all the land under the CRT in question."

That is indeed correct. The gazetting authority also specifically targeted Lot 12 of Lot 16 Nuanetsi Ranch A. 1st respondent was allocated a smaller portion thereto being subdivision 1. The propriety of enforcement of the writ of execution he has in his favour is what is before this court. I am therefore of the respectful view that this issue is not *res judicata*.

In the matter of *Zhanje v Gambe* HH 381-24 it was held per Dube JP and Katiyo J thus:

> "The defence of res judicata is successfully raised where a matter that has already been determined in prior proceedings is brought again. The parties are barred from relitigating the same issue in a lawsuit. Such a matter cannot be re-opened by the same parties on the basis of the same causes of action. The plea of res judicata promotes the principle of finality in litigation and curtails endless litigation. See: *Wolfenden v Jackson* 1985(2)ZLR 313, *Danisile Sibanda v Sheriff of Zimbabwe & 4 Ors* HB22-22, *Banda & Ors v ZISCO* 1991(1) ZLR 340 (S), *O'Shea v Chiunda* 1999(1)ZLR 334(S).2.
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> The following requirements must be met:
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> a) the parties must be the same as in the prior matter.
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> b) the cause of action must be the same.
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> c) the prior case must have been decided on the merits."

In casu it is common cause that the parties are the same, however the cause of action is not the same. The prior matter was also not determined on the merits. In the *Zhanje* matter *supra* it was held further that;

> "All the requirements must be met and are to be considered cumulatively. Where any one requirement is not met, the defence fails. Once all the requirements are met, a plea of res judicata will be successful entitling the court to dismiss the subsequent matter."

In the Magistrates court sitting in the district of Masvingo what was determined was the 1st respondent's right to eject anyone who occupied Subdivision 1 of Lot 12 of Lot 16. That was decided in his favour. The learned Magistrate accepted that the two properties are different but granted an eviction in relation to a specific piece of land. The propriety of ejecting occupiers of Lot 1 of Lot 4AB was never an issue before any court. Under case number HC1861/23 the High Court declined to exercise its jurisdiction over this matter on grounds that there was a

pending application for rescission in the Masvingo magistrates Court. It therefore did not deal with the matter on the merits. When the Magistrates Court heard the rescission application it declined it on the basis that despite being barred for failure to file a valid notice of opposition, the matter was heard in the presence of the applicants, it was not void *ab origine* and that it did not have patent errors. Again the matter was not dealt with on the merits.

Counsel for the 1st respondent argued further and quite forcefully as follows;

> "That Applicant had knowledge of the acquisition and did not do anything about what was mentioned in the judgment of Wamambo J in judgement number HC239/20 in the following terms;
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> "....the Applicant was aware that the land she occupied was compulsorily acquired by government in2017." (Page 5 of the Cyclostyled judgment)
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> This Honourable Court therefore made a factual finding that the land allocated to 1st Respondent is the land that was occupied by the Applicant prior to acquisition. If Applicant was not happy with that factual finding she should have appealed. Applicant cannot now reopen in its heads of argument something which this court has already sealed by seeking as they do an order "confirming that the property described as Lot 1 of Lot 4 AB Nuanetsi Ranch A is separate and distinct from the property described as subdivision 1 of lot 12 of lot 16."

With respect I do not find such argument convincing. I find it too generalised. It is correct that the land referred to was compulsorily acquired by the government in 2017, it is not the acquisition which is being argued here. The argument centres on the legality of evicting an occupier of a specific land relying on an offer letter pertaining to a completely different piece of land.

That brings us to the argument on *locus standi*. Did the 1st respondent have the *locus standi* to eject applicants from Lot 1 of Lot 4AB Nuanetsi Ranch A? I am convinced he did not and to date he does not. If it is State land, let the State deal with the applicants in the manner it deems appropriate. After all they are a Zimbabwean company registered in terms of the laws of the land and it is not argued anywhere that the 2nd applicant is a *peregrinus*. To arbitrarily dispossess them using an inapplicable writ of ejectment does not accord with the rule of law. Per *contra* the applicants are the victims of abuse of process. They have all the judicial standing to seek relief. It is not disputed that they bought the land prior and have been plying their trade on it since 1998. They were displaced by a person without *locus standi* or any right towards

that specific piece of land. If it is indeed state land, their rights as against those of the 1st respondents are more grounded.

I do not find favour with counsel for the 1st respondent's argument that when the land acquisition was implemented it did away with all laws of conveyancing. I particularly do not agree that descriptions of land and the related diagrams became irrelevant and replaced by new ones. To do so would be to promote chaos which in turn would breed lawlessness. That does not accord with the words of Mathonsi J, (as he then was), as cited in the opening paragraphs above i.e;

> "The situation obtaining at the moment is that land is acquired lawfully by the acquiring authority and distributed to citizens in terms of existing legislation and legal instruments put in place for that purpose. This is as it should be because Zimbabwe embraces the rule of law."

It was further argued *in limine* and on the merits that there is an absence or failure to identify the application that is before the court. I am satisfied that the application before the court as outlined in the founding affidavit is for a declaratur and consequential relief.

It is trite that an application for a declaratory order ought to be made in terms of the High Court Act [*Chapter 7:06*]. Section 14 of the Act provides that:

> "The High Court may in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

In the matter of *Johnsen* v *Agricultural Finance Corporation* 1995 (1) ZLR 65. The court stated the position as follows:

> "The condition precedent to the grant of a declaratory order under section 14 of the High Court Act of Zimbabwe, 1981 is that the applicant must be an "interested person", in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must concern an existing, future or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated thereto. But the presence of an actual dispute or controversy between the parties is not a pre-requisite to the exercise of jurisdiction. See *Ex P Chief Immigration Officer* 1993 (1) ZLR 122 (S) at 129F-G; 1994 (1) SA 370 (25) at 376G-H; *Munn Publishing (Pvt) Ltd v ZBC* 1994 (1) ZLR 337 (S) and the cases cited …"

In the present matter the applicants aver that they purchased the piece of land in question and have been in occupation since 1998 to the date of their eviction. At the very least they have a right of peaceful and undisturbed occupation which transcends into a substantial interest in the subject matter of the suit. Even though the applicants claim ownership, they did not attach any such proof. It is correct that they do not per se challenge the gazetting of the farm. Without seeking to ventilate the issue of ownership it strained my mind why the expropriating authority specified Lot 12 of lot 16 of Nuanetsi Ranch A out of all Lots falling under CRT 4515/2000, in its Government Gazette of 29th September 2017? That is however not subject of this judgment. I am convinced that the applicants herein were victims of either mistaken identity or a deliberate abuse of process. I therefore find the application before this court to be an appropriate one for the relief sought. As I am not bound by the draft order, I shall exercise my discretion to adjust it accordingly.

Disposition

In the foregoing I make the following order, it is hereby declared as follows;

1. The property described in the court order and writ of ejectment issued pursuant to the ruling under EV05/23 being Lot 1 of Subdivision 12 of Lot 16 of Nuanetsi Ranch A does not correspond with the description of the property which was occupied by the Applicants which is Lot 1 of Lot 4AB Nuanetsi Ranch A regardless of their ownership status.

2. The ejectment of the applicants pursuant to a writ issued under EV 05/23 is therefore null and void.

3. Consequently, it was incompetent for the 1st and 2nd Respondent to cause the eviction of the Applicant from Lot 1of Lot 4AB Nuanetsi Ranch A on the basis of the court order and writ of ejectment issued pursuant to the ruling under EV05/23,

4. In the premises, it be and is hereby ordered that the 1st Respondent and all those claiming occupation through him shall remove or cause the removal of themselves and all such persons occupying of Lot 1 of Lot 4AB Nuanetsi Ranch A within 48 hours of the service of this order.

5. Failing such removal, the Sheriff of the High court be and is hereby authorised and directed to evict the 1st Respondent and all persons claiming occupation through and under him of Lot 1 of Lot 4AB Nuanetsi Ranch District of Masvingo.

6. The 1st Respondent to pay costs of suit.

Webb, Low and Barry Inc Ben Baron & Partners, applicants' legal practitioners
Mutumbwa, Mugabe & Partners, 1st respondent's legal practitioners